

Contestant Number: _____

Time: _____

Rank: _____



LEGAL OFFICE PROCEDURES (245)

STATE 2021

PART 1 OBJECTIVE

Multiple Choice/True False _____ (250 points)

PART 2 PRODUCTION

Job 1: Client Memorandum _____ (100 points)

Job 2: Agenda _____ (100 points)

TOTAL POINTS _____ (450 points)

Test Time: 60 minutes

GENERAL GUIDELINES:

Failure to adhere to any of the following rules will result in disqualification:

1. Member must hand in this test booklet and all printouts if any. Failure to do so will result in disqualification.
2. No equipment, supplies, or materials other than those specified for this event are allowed in the testing area. No previous BPA tests and/or sample tests (handwritten, photocopied, or keyed) are allowed in the testing area.
3. Electronic devices will be monitored according to ACT standards.

EXAM GUIDELINES:

1. Ensure this test booklet contains Jobs 1 and 2.
2. Key all jobs according to the instructions given.
3. Correct any and all formatting, spelling or grammar errors. Use the formatting guide in the *Style & Reference Manual*.
4. Your name or initials should *not* appear on any work you submit. Use your Member ID in any occasion you would normally key your reference initials.
5. In the lower **right** hand corner of ALL work submitted (unless otherwise specified), key your contestant number and job number.
6. If you complete the event before the end of the time allotted, notify the proctor. Time may be considered a factor in determining a winner when there is a tie score.
7. Place your scoring sheet on top of your jobs. Jobs should be placed in numerical order.

PRODUCTION STANDARDS	
0 Errors	100 Points
1 Error	90 Points
2 Errors	70 Points
3 Errors	50 Points
4+ Errors	0 Points

PART 1 – OBJECTIVE

Multiple-Choice Directions: Mark the scoring sheet with the letter that best answers the question or completes the statement.

1. Where may a notary public perform notarial duties?
 - A. In a strict geographical area where commissioned
 - B. Anywhere International Courts are recognized
 - C. Anywhere in the United States
 - D. Anywhere in his or her domiciled state
2. Legal offices *most* often use and prefer a filing system based on _____.
 - A. alphabetical by client name
 - B. retainer fees
 - C. client numbers systematically assigned
 - D. date order first, then client name
3. What is the name of first document filed with the court in a lawsuit?
 - A. Docket
 - B. Complaint
 - C. Affidavit
 - D. Proceeding
4. The process by which prospective jurors are questioned and selected is called _____.
 - A. *res judicata*
 - B. *sine die*
 - C. *voir dire*
 - D. *ex parte*
5. Which of the following statements is *true* about partnerships?
 - A. Partnerships may own property.
 - B. Partnerships and LLCs are the same thing.
 - C. A partnership may be comprised of only one partner.
 - D. Partnerships must be established by written contract.
6. The legal concept of statute of limitations is used to determine the _____.
 - A. jurisdiction
 - B. dollar amount limit
 - C. date by which a lawsuit must be filed
 - D. complainant's legal status

7. If a client comes to his attorney's office and demands to see his file while the attorney is gone and *cannot* be reached, which of the following would be the *best* response to the situation?
 - A. Show the client his file, but stand by and supervise his review.
 - B. Photocopy the entire file and give the copy to the client.
 - C. Explain that you do not have the authority to grant the request and must refuse.
 - D. Threaten to call the police if he does not leave your office.
8. Corporations are entities governed by _____.
 - A. state law
 - B. the Internal Revenue Service
 - C. county or municipality law
 - D. the federal government
9. Which of the following statements regarding confidentiality is *not* true?
 - A. Confidentiality is a high priority for all legal office staff.
 - B. Outside of the office, legal assistants may discuss client matters with their spouses.
 - C. Breaching confidentiality is a matter of legal ethics.
 - D. Attorneys may be held liable for breaches of confidentiality by their staff.
10. When an attorney represents a client for no fees (usually the client cannot afford to pay legal fees), the matter is referred to as _____.
 - A. public service
 - B. guardianship
 - C. insolvent
 - D. *pro bono*
11. Which of the following is the *best* definition of a deposition?
 - A. An oral statement given under oath
 - B. Testimony given in a courtroom during trial
 - C. Sworn statement given at an accident or crime scene
 - D. Answers given by one who is incarcerated
12. A(n) _____ is a person who is able to legally verify signatures and administer oaths on formal documents.
 - A. attorney-at-law
 - B. registrar
 - C. judge
 - D. notary public
13. Which of the following terms is related to criminal law?
 - A. litigation
 - B. breach of contract
 - C. fiduciary
 - D. arraignment

14. Two methods of discovery in a litigated matter are _____.
 - A. requests and interrogatories
 - B. motions and hearings
 - C. subpoenas and service of process
 - D. complaints and summons
15. What term describes a person or an entity given authority under a Last Will and Testament to administer the estate?
 - A. Personal Representative
 - B. Fiduciary
 - C. Grantee
 - D. Heir
16. Books that recite principles of law supported by footnote references to cases are _____.
 - A. case law reciters
 - B. restatements
 - C. Words and Phrases
 - D. legal encyclopedias
17. Maria's attorney asked her to prepare a bill for her client. The bill should include 2.5 hours on the client's legal matters, and her time is billed at \$165 per hour. Maria also added \$22.50 in photocopy and delivery expenses and \$82 in court filing fees. What is the total amount due by the client?
 - A. \$619.00
 - B. \$519.50
 - C. \$520.50
 - D. \$517.00
18. Which of the following identifies the difference between a letter and a memorandum (memo)?
 - A. Memos are for internal audiences, and letters are for external audiences.
 - B. Memos are not legally binding; letters are legally binding.
 - C. Letters are one or two pages, whereas memos are one page only.
 - D. Attorneys write letters; legal assistants write memos.
19. Which of the following sentences contains a grammatical, number style, spelling, or other error?
 - A. Both the witness and her attorney were late to the deposition.
 - B. Both the witnesses and her attorney were late to the deposition.
 - C. Neither the witness nor the attorney was on time to the deposition.
 - D. The deposition had begun late due to individuals not being on time.

20. Which of the following sentences does *not* contain a grammatical, number style, spelling, or other error?
- A. Prepare the affidavits to be filed with the court on June 12th.
 - B. Prepare the documents to be hand delivered to the court tomorrow.
 - C. Prepare the affidavits to be filed with the court on June 12.
 - D. Prepare the documents to be faxed to the court on June 12th.

True-False Directions: Mark the scoring sheet with the letter A to indicate TRUE and the letter B to indicate FALSE.

21. Some documents are *not* open to public search, such as adoptions and settlement agreements.
22. A conflict of interest may exist when attorney is asked to sue an individual he or she previously represented in a different legal matter.
23. Under Bankruptcy Court rules, some debtors are able to discharge each and every type of debt.
24. The court where documents are filed prescribes the format for legal documents.
25. If a court determines that both parents should share physical custody of their minor children in a separation or divorce, it is referred to as “joint custody.”

PART 2 - PRODUCTION

You work for the law firm Smith & Rodriquez. You are assisting attorney Rene Forsheim in a litigation action involving an alleged dog bite on September 12, 2020.

Plaintiff:	Nancy Dorman 1601 Truman Street Dearborn, Michigan 48120	Represented by attorney Juan Embego Grainer Law Offices 4820 South Pacific Street Detroit, Michigan 48205
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Defendants:	James Redmond and Nora Redmond 652 N Crater Way Billings, Montana 59102	Represented by attorney Rene Forsheim Smith & Rodriquez 3280 Grand Avenue Billings, Montana 59102
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Court:	District Court of the 1st Judicial District in and for Yellowstone County, Montana
Action:	Case No. BI-389

Job 1: Client Memorandum

Ms. Forsheim asks you to prepare a client memorandum in this case. The memo will provide an update of the discovery in the case and provide recommendations. Correct any obvious errors in grammar, punctuation, number style, and spelling as you prepare this client memorandum in proper memorandum format.

To: James and Nora Redmond
From: Rene Forsheim
Date [current date]
Subject: Dorman vs. Redmond, Yellowstone County Case No. BI-389

This memorandum will present my review and analysis of the answers to interrogatories recently filed by the plaintiff, provide a status report of where we are in discovery process, and outline my recommendations for moving forward.

1. The plaintiff sought medical treatment after she suffered a bite on her left arm allegedly inflicted on her from your dog on September 12, 2020, while she was visiting friends in Billings, Montana.
2. The first and only treatment sought in Montana by the plaintiff was on September 12, 2020. She was treated at an emergency care facility with standard treatment for an animal bite, including vaccination and stitches.
3. The plaintiff returned to Dearborn, Michigan, in the days following the incident. Shortly thereafter the plaintiff sought medical treatment from her primary physician on October 3, 2020. The primary physician began treatment for infection in the wound.
4. From October 3, 2020, until the time of the plaintiffs answers to interrogatories, she had been seen by 8 different providers with over 32 visits. This includes visits to a provider who was treating him for mental anguish and anxiety due to the incident.

5. The plaintiff's primary treating physician acknowledged complete healing of the animal bite wound at a visit in December.

My recommendation at this time is to request medical records from the 8 different providers. We will need to schedule a trip to Michigan and take depositions of some or all of these providers, but it will be most efficient if we examine the medical records first. The largest part of the plaintiff's claim for damages is pain and suffering, and therefore, we will need to depose the provider who is treating the plaintiff for mental anguish. While we are there, we will depose some of the other providers that we deem necessary.

I will request the medical records from Mr. Embego or through the court, if necessary. We will review them and ~~then~~ make decisions about next steps.

Job 2: Agenda

Ms. Forsheim asks you to prepare a draft agenda of possible depositions in Michigan. You have made arrangements for scheduling them through a local court reporter in Dearborn, Michigan (Williamson Court Reporter Services, 650 W. State Street, Dearborn, MI 48120), on Tuesday, March 31, and you put together the following draft agenda with five agenda items. Do not list a time for the lunch break.

You know three medical provider names for certain, and will leave two time slots for the providers yet to be determined. Include an em dash (with a space on each side of the dash) between the hours listed for times. Correct any obvious errors in grammar, punctuation, number style, and spelling as you prepare this draft agenda in proper agenda format.

Smith & Rodriquez

Agenda

Depositions in the Matter of Dorman v. Redmond

March 31, 2021

Board Room of Williamson Court Reporter Services

Include full address here on one line

1. 8 a.m. – 9:30 a.m. Deposition of Marcia Ledsinki, PC
2. 9:30 a.m. – 11 a.m. Deposition of Dr. Ryan Soo
3. 11:30 a.m. – 1 p.m. Deposition of Kim Yong, Physical Therapist
- Lunch Break
- 2:30 – 5 p.m. Deposition of TBD
- 5:30 -7 p.m. Deposition of TBD

